



NEWS

Federal Communications Commission
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DTV TRANSITION MOVING FORWARD: FCC SAYS MORE THAN 80% OF COMMERCIAL DTV STATIONS ARE ON THE AIR

Acts on Third Extension Requests for Few Remaining Broadcasters

Washington, D.C. - The Federal Communications Commission (FCC) today said the transition to digital television is moving forward as 1,061 TV stations, representing 81 percent of all commercial stations, are currently on the air with a DTV signal. The FCC noted that broadcast stations have made significant progress and that most of the remaining stations have made diligent efforts to broadcast a DTV signal. Today, the FCC took action regarding 141 stations that filed a request for a third extension. Of these, the FCC granted 104 stations with an additional six months to begin broadcasting a digital signal. Seven stations were denied extensions and issued letters of admonishment.

To further a nationwide system of DTV, the FCC adopted in 1997 an aggressive DTV construction schedule. This required television stations affiliated with the ABC, CBS, Fox, and NBC television networks to build DTV facilities in the ten largest television markets by May 1, 1999. Stations affiliated with these networks in television markets ranked 11 through 30 were required to construct their DTV facilities by November 1, 1999. All other commercial stations were required to construct their DTV facilities by May 1, 2002, and all noncommercial stations were to have constructed their stations by May 1, 2003.

Stations requesting extensions of their DTV deadline are required to demonstrate that failure to construct has been due to circumstances either unforeseeable or beyond their control. Moreover, stations must show construction progress since the grant of their last extension. Stations that fail to explain their inability to meet their DTV construction obligation will be subject to the recently-adopted DTV remedial measures including admonishment, forfeiture and reporting requirements.

The 104 stations that were granted a third extension demonstrated that their request was warranted and showed progress on construction of their facilities since the grant of their last extension. Examples of delays encountered by these stations are construction delays; delays in equipment delivery; local tower siting problems; the September 11th attack in New York; stations awaiting FCC action on rulemakings or applications; and stations with financial problems.

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Seven stations failed to adequately justify further extension of their DTV deadline. The FCC admonished these stations and gave them six months to complete construction of their DTV facilities or face financial sanctions. During this six month period, the stations will be subject to periodic reporting requirements to ensure that construction is progressing. The seven stations are: WVUE in New Orleans, LA; WICZ in Binghamton, NY; WKBW in Buffalo, NY; KMOV in Medford, OR; WSJU in San Juan, Puerto Rico; WDWL in Bayamon, Puerto Rico; WJAR in Providence, RI.

The remaining 30 stations are classified "satellite" stations, which are full power terrestrial broadcast stations that are authorized to retransmit all or part of the programming of a parent station that typically is commonly owned. The issue of whether to permit satellites to turn in their digital authorization and "flash cut" to DTV transmission at the end of the transition period is currently under consideration, and thus the FCC today deferred the construction deadlines for these stations until that issue is resolved.

Action by the Commission, October 16, 2003, by Order (FCC 03-xxx).

-FCC-

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